

Kautilya's Arthashastra

Book II, "The Duties of Government Superintendents"

CHAPTER I. FORMATION OF VILLAGES.

- 1) EITHER by inducing foreigners to immigrate (*paradesappraváhanena*) or by causing the thickly-populated centres of his own kingdom to send forth the excessive population (*svadésábhishyandavámanéna vá*), the king may construct villages either on new sites or on old ruins (*bhútapúrvama vá*).
- 2) Villages consisting each of not less than a hundred families and of not more than five-hundred families of agricultural people of *súdra* caste, with boundaries extending as far as a *krósa* (2250 yds.) or two, and capable of protecting each other shall be formed.
- 3) Boundaries shall be denoted by a river, a mountain, forests, bulbous plants (*grishti*), caves, artificial buildings (*sétubandha*), or by trees such as *sálmali* (silk cotton tree), *samí* (*Acacia Suma*), and *kshíravriksha* (milky trees).
- 4) There shall be set up a *sthániya* (a fortress of that name) in the centre of eight-hundred villages, a *drónamukha* in the centre of four-hundred villages, a *khárvátika* in the centre of two-hundred villages and *sangrahana* in the midst of a collection of ten villages.
- 5) There shall be constructed in the extremities of the kingdom forts manned by boundary-guards (*antapála*) whose duty shall be to guard the entrances into the kingdom. The interior of the kingdom shall be watched by trap-keepers (*vágurika*), archers (*sábara*), hunters (*pulinda*), *chandálas*, and wild tribes (*aranyachára*).

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7) Those who perform sacrifices (*ritvik*), spiritual guides, priests, and those learned in the Vedas shall be granted Brahmada lands yielding sufficient produce and exempted from taxes and fines (*adandkaráni*).

Superintendents, Accountants, Gopas, Sthánikas, Veterinary Surgeons (*Aníkastha*), physicians, horse-trainers, and messengers shall also be endowed with lands which they shall have no right to alienate by sale or mortgage.

8) Lands prepared for cultivation shall be given to tax-payers (*karada*) only for life (*ekapurushikáni*).

9) Unprepared lands shall not be taken away from those who are preparing them for cultivation.

10) Lands may be confiscated from those who do not cultivate them;¹¹⁾ and given to others; or they may be cultivated by village labourers (*grámabhritaka*) and traders (*vaidehaka*);¹²⁾ lest those owners who do not properly cultivate them might pay less (to the government).¹³⁾ If cultivators pay their taxes easily, they may be favourably supplied with grains, cattle, and money.

14) The king shall bestow on cultivators only such favour and remission (*anugrahaparihárau*) as will tend to swell the treasury, and shall avoid such as will deplete it.

15) A king with depleted treasury will eat into the very vitality of both citizens and country people.¹⁷⁾ Either on the occasion of opening new settlements or on any other emergent occasions, remission of taxes shall be made.

18) He shall regard with fatherly kindness those who have passed the period of remission of taxes.

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19) He shall carry on mining operations and manufactures, exploit timber and elephant forests, offer facilities for cattlebreeding and commerce, construct roads for traffic both by land and water, and set up market towns (*panyapattana*).

20) He shall also construct reservoirs (*sétu*) filled with water either perennial or drawn from some other source.²¹⁾ Or he may provide with sites, roads, timber, and other necessary things those who construct reservoirs of their own accord. Likewise in the construction of places of pilgrimage (*punyasthána*) and of groves.

22) Whoever stays away from any kind of cooperative construction (*sambhúya setubhandhát*) shall send his servants and bullocks to carry on his work,²³⁾ shall have a share in the expenditure, but shall have no claim to the profit.

24) The king shall exercise his right of ownership (*swámyam*) with regard to fishing, ferrying and trading in vegetables (*haritapanya*) in reservoirs or lakes (*sétushu*).

25) Those who do not heed the claims of their slaves (*dása*), hirelings (*áhitaka*), and relatives shall be taught their duty.

26) The king shall provide the orphans, (*bála*), the aged, the infirm, the afflicted, and the helpless with maintenance. He shall also provide subsistence to helpless women when they are carrying and also to the children they give birth to.

27) Elders among the villagers shall improve the property of bereaved minors till the latter attain their age; so also the property of Gods.

having
lost a
relative or close
friend who has
recently died

28) When a capable person other than an apostate (*patita*) or mother neglects to maintain his or her child, wife, mother, father,

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minor brothers, sisters, or widowed girls (*kanyá vidhaváscha*), he or she shall be punished with a fine of twelve panas.

2e) When, without making provision for the maintenance of his wife and sons, any person embraces ascetism, he shall be punished with the first amercement; likewise any person who converts a woman to ascetism (*pravrájayatah*).

30) Whoever has passed the age of copulation may become an ascetic after distributing the properties of his own acquisition (among his sons)³¹⁾; otherwise, he will be punished.

32) No ascetic other than a *vánaprastha* (forest-hermit), no company other than the one of local birth (*sajátádanyassanghah*), and no guilds of any kind other than local cooperative guilds (*sámuttháyiká-danyassamayánubandhah*) shall find entrance into the villages of the kingdom. Nor shall there be in villages buildings (*sáláh*) intended for sports and plays. Nor, in view of procuring money, free labour, commodities, grains, and liquids in plenty,
34) shall actors, dancers, singers, drummers, buffoons (*vágjívana*), and bards (*kusílava*) make any disturbance to the work of the villagers;
35) for helpless villagers are always dependent and bent upon their fields.

36) The king shall avoid taking possession of any country which is liable to the inroads of enemies and wild tribes and which is harassed by frequent visitations of famine and pestilence. He shall also keep away from expensive sports. उक्ता २१२१२

37) He shall protect agriculture from the molestation of oppressive fines, free labour, and taxes (*dandavishtikarábádhaih*); herds of cattle from thieves, tigers, poisonous creatures and cattle-disease.

38) He shall not only clear roads of traffic from the molestations

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of courtiers (*vallabha*), of workmen (*kármika*), of robbers, and of boundary-guards, but also keep them from being destroyed by herds of cattle.

39) Thus the king shall not only keep in good repair timber and elephant forests, buildings, and mines created in the past, but also set up new ones.

[Thus ends Chapter I, "Formation of Villages" in Book II, "The Duties of Government Superintendents," of the *Arthasástra* of Kautilya. End of twenty-second chapter from the beginning.]

CHAPTER II. DIVISION OF LAND.

THE King shall make provision for pasture grounds on uncultivable tracts.

Bráhmans shall be provided with forests for sóma plantation, for religious learning, and for the performance of penance, such forests being rendered safe from the dangers from animate or inanimate objects, and being named after the tribal name (*gótra*) of the Bráhmans resident therein.

A forest as extensive as the above, provided with only one entrance rendered inaccessible by the construction of ditches all round, with plantations of delicious fruit trees, bushes, bowers, and thornless trees, with an expansive lake of water full of harmless animals, and with tigers (*vyála*), beasts of prey (*márgáyuka*), male and female elephants, young elephants, and bisons—all deprived of their claws and teeth—shall be formed for the king's sports.

On the extreme limit of the country or in any other suitable